GIFT SARUCHERA
versus
CHIPO MUUSHA

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 16 & 24 June 2026

Civil action

Plaintiff in person
W Chagwiza, for the defendant

DEMBURE J: The parties appeared before me for trial on 15 June 2026. There is a question of law apparent from the pleadings that must be determined before evidence can be led. The court accordingly directed that the parties make submissions on the question as to whether, in the face of the extant judgments of the court, including the one handed down before UCHENA J (as he then was) in the dispute between the parties on 7 March 2012, the claim is competent, or not bad in law. The court heard oral submissions on the point of law on 16 June 2026 and reserved judgment *sine die*.

In this matter, the plaintiff sued out a summons for the eviction of the defendant, his former wife, from an immovable property known as number 10 Save Road, New Mabvuku, Harare (*"the property"*) and costs of suit on 30 October 2024. The claim is anchored on the remedy of *rei vindicatio*. The plaintiff alleges that the property belongs solely to him after he paid the defendant's half share therein pursuant to a decree of divorce in 2011. The claim is contested by the defendant, who took the position that she is equally a joint owner of the property, and in terms of the divorce order, the property ought to be sold for the parties to share the proceeds thereof equally. She also contended that the purported buyout was a nullity, a position already finally confirmed by the court.

THE BACKGROUND

The plaintiff and the defendant were husband and wife, respectively, having been married in terms of the then Marriages Act [*Chapter 5:11*] on 10 April 1993. The court granted a decree of divorce terminating their marriage on 16 October 2007. The judgment was issued under case number HC 4502/06 and was handed down before GUVAVA J (as she then was). The operative part of the said judgment concerned the distribution of the property, which the court had awarded to the parties in equal undivided shares. The court set strict time frames within which the plaintiff would exercise his right to buy out the defendant. The court ordered that:

> "1. A decree of divorce is hereby granted.
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> 2. The plaintiff is awarded a 50% share in the immovable property being number 10 Save Road, Mabvuku.
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> 3. The property shall be valued by an independent evaluator appointed by the Registrar of the High Court from his list of valuers and the cost of valuation shall be shared equally by the parties.
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> (a) The valuation shall be carried out within two months of the date of this order.
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> (b) The defendant shall have the first option to buy out the plaintiff of her 50% share in the property within a month of the date of the valuation.
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> (c) In the event that the defendant fails to buy out the plaintiff of her 50% share in terms of this order the plaintiff shall have the right to buy out the defendant of his 50% share within a month from the date that the defendant's right expires; and
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> (d) should both parties fail to buy out the other in accordance with the terms of this order the property shall be sold at best advantage and the net proceeds shall be shared equally between the parties."

The parties subsequently purported to have bought out each other's share. The court, before UCHENA J in case number HC 3583/11, which was an application brought by the defendant against the plaintiff, made factual findings that both parties failed to comply with the terms of the court order by GUVAVA J. See *Chipo Muusha* v *Gift Saruchera & Anor* HH 118/12. The court found that the time within which the Registrar had purported to appoint a valuer was unlawfully extended in disregard of the order of court. It was further held that only the court which could properly extend the time frames within which the valuation could be done, and that the buyout options had to be exercised as set out in the divorce order. The defendant's application was accordingly dismissed.

Not to be undone, the plaintiff filed his own court application for variation against the defendant under HC 3029/12. The matter was heard before UCHENA J, who issued a judgment on

20 February 2014. See *Gift Saruchera* v *Chipo Muusha* HH 61/14. In that judgment, the court reiterated that the parties have not complied with the time frames stipulated in the divorce order granted by GUVAVA J for the buyout of each other's shares. The court, however, varied the time frames given in the order by GUVAVA J. It then ordered a revaluation of the property within the same time frame as had been given by GUVAVA J. Thus, the valuation had to be done within one month of the date of the order. At p 2 of the judgment, the court reasoned that:

> "The valuation on file is too old to reflect the current value of the house. I will therefore order a revaluation within the same time frame as had been given by GUVAVA J."

The operative order was a restatement of the terms of para 3 of the order by GUVAVA J.

The plaintiff went on to submit another application for variation of the order under case number HC 8941/15. The matter was determined by TSANGA J, who handed down her judgment on 14 June 2014, dismissing the application. See *Gift Saruchera* v *Chipo Saruchera* HH 372/17. In that judgment, the court rejected the request to vary the time frames in the divorce order on the basis that there was no basis for varying GUVAVA J's order. The court reasoned that the predicament the parties found themselves in was one that had been clearly catered for in the judgment. There was no ambiguity about what would happen if either party failed to buy out the other within the stipulated time frames. The position was clear: the parties simply had to proceed with the sale of the property and share the net proceeds equally between them in terms of para 3(d) of the divorce order. This judgment, as well as the other decisions of the court, have not been set aside or reversed.

Despite these extant judgments, the plaintiff filed this claim alleging that he is the sole owner of the property occupied by the defendant. The basis of his claim is that sometime in the year 2011, and in terms of the order of the court, he bought out the defendant's 50% share of the property. It was pleaded that despite the demand, the defendant has refused to vacate the property.

The defendant entered an appearance to defend. In its plea on the merits, she denied that the plaintiff is the sole owner of the property. She maintains that she co-owns the property with the plaintiff in equal shares and cannot be evicted from her own property. She pleaded that the plaintiff failed to buy out her 50% share within the time frame stipulated in the divorce order.

Consequently, any purported buyout was of no legal force and effect. The property has to be disposed of in terms of the judgment by TSANGA J. The plaintiff insists on his claim despite the above judgments.

As stated above, the court raised a question of law *mero motu*, and the parties made the following submissions thereto. The legal issue also arises from the defendant's plea.

ORAL SUBMISSIONS MADE BY THE PARTIES

The plaintiff submitted that according to the judgment granting the divorce, the court mentioned that the first option to buy out the other party lies with the owner of the property. He argued that the defendant conducted an evaluation without authority and that the property's value was set at US$3 000. He did not accept the buyout at that value. He had another valuation done. He argued that he has a valid claim. It was also stated that, when they conducted the valuation, the value was US$5000, and he paid the amount at the High Court and has the receipt.

Per contra, Mr *Chagwiza* submitted that the current proceedings are governed by rule 52(7) of the High Court Rules, 2021. That rule empowers the court to raise a point of law *mero motu* and direct the parties to address it, and to make any order as it deems expedient. There is no doubt that the judgment of UCHENA J in HH 118/12 clearly made findings that the purported buyout of the defendant's shares was unlawful insofar as it was done contrary to the primary divorce order. Several cases hold that anything done contrary to a court order is a nullity. Counsel referred to the case of *Sithole* v *Sithole & Ors* HH 139/18, where DUBE J (as she then was) held that a thing done in breach of a court order is a nullity and has no effect. The court therein also cited the case of *Munyikwa* v *Mapedzauswa & Anor* SC 91/05, in which property was sold contrary to a court order, and it was held that court orders are made to be complied with.

Counsel further argued that in para 4 of the plaintiff's declaration, the plaintiff pleaded the cause of action that he bought out the defendant's 50% share, and she has continued to be in occupation of the property. It is clear that the cause of action is a nullity. It is based on a nullity. If there is no valid cause of action, it means that the claim is incurably bad in law. It has no foundation in law. He had initially submitted that the matter ought to be struck off the roll, but

later acknowledged that the proper exercise of the court's discretion, where the claim is bad in law, is to dismiss the matter.

It was further submitted that the appropriate order of costs would be costs on an attorney-client scale. Although the plaintiff is not represented, the pleadings pointed out the weaknesses of the plaintiff's case. At the Pre-Trial Conference (*"PTC"*), MAWADZE DJP strenuously tried to explain the same thing that he should not proceed with the matter. Looking at the pleadings, the plaintiff is literate and can be able to interpret the judgment by UCHENA J. But here we have a person who stubbornly defies the court's judgment. This court must discourage litigants who do not respect the court. The plaintiff also brought other matters, which he aborted, case numbers HC 2618/17 and HC 126/18. There is also another one done by TSANGA J when he sought variation, and the application was dismissed in 2015 after the attempted buyout. This is abuse of court process and a harassment of the defendant. There is another case, HC 3879/23, which the plaintiff filed and that was recently deemed abandoned. The defendant is facing multiple lawsuits over a completely baseless matter. What the plaintiff must do is to accept that the property be sold and the parties move on. A punitive award of costs may be granted.

In reply, the plaintiff contended that it is not true that he is litigious and has been disturbing the defendant. This is his only case. He denied bringing up the cases cited by Mr *Chagwiza*. When the court asked whether he was being honest by denying the cases he had filed, he submitted that he had forgotten about the one before TSANGA J. He insisted that the defendant was the first to have the property valued at US$6 000, and she paid US$3 000 to buy him out. When he found that she had not paid, he decided to do another valuation, and she was paid US$5 000. The matter was not resolved. He further stated that the property was an inheritance from his parents and was not his. That the defendant was fully aware that the property belonged to his parents. The plaintiff conceded that he did not challenge the divorce order in the Supreme Court, as he was hounded out of the country to the Democratic Republic of Congo at the time. The other allegations he raised against the defendant were completely irrelevant to the legal issue.

THE ANALYSIS AND DETERMINATION

It is trite that the court is at liberty to raise any point of law which goes to the root of the proceedings *mero motu*. The court must be satisfied that valid proceedings are before it to trigger

the exercise of its jurisdiction. However, once it raises a question of law, the court is required to give the parties an opportunity to address it or make submissions on the legal issue before making a determination. The above legal principles were aptly set out in *Nzara & Ors* v *Kashumba N.O. & Ors* SC 18/18 at pp 11-12, where UCHENA JA held that:

> "The function of a court is to determine disputes placed before it by the parties. It cannot go on a frolic of its own. **Where a point of law or a factual issue exercises the court's mind but has not been raised by the parties or addressed by them either in their pleadings in evidence or in submissions from the bar, the court is at liberty to put the question to the parties and ask them to make submissions on the matter.**
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> In *Welkom Municipality v Masureik and Herman T/A Lotus Corp* 1997 (3) SA 363 at 371 G-H MARAIS JA, commenting on what the court should base its decision on, said:
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> > 'I should add that whether or not South Africa did or did not fail to do so is a question of fact upon which there was no evidence before the court *a quo*, and for reasons too obvious to require enumeration, **the learned Judge was not entitled to enquire into this issue of fact after reserving judgment and without any reference to the parties, and then to decide it**. Compare *Kauesa v Minister of Home Affairs and Others* 1996 (4) SA 965 (NmS) at 973H – 974C.'
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> In the Namibian case of *Kauesa v Minister of Home Affairs and Others* 1996 (4) 965 (NmS) DUMBUTSHENA AJA at pages 973H to 974C said:
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> > 'The above matters are not crucial to the determination of this appeal. They are however, important because a frequent departure from counsel's, more correctly the litigant's case, may be wrongly interpreted by those who seek justice in our courts of law. **It is the litigants who must be heard and not a judicial officer.**
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> > It would be wrong for judicial officers to rely for their decisions on matters not put before them by litigants either in evidence or in oral or written submissions. **Now and again, a Judge comes across a point not argued before him by counsel but which he thinks material to the resolution of the case. It is his duty in such a circumstance to inform counsel on both sides and invite them to submit arguments either for or against the Judge's point**. It is undesirable for a court to deliver a judgment with a substantial portion containing issues never canvassed or relied on by counsel...'" (*my emphasis*)

In addition to the above common law position, Mr *Chagwiza* correctly argued that the court may also raise any question of law in any cause and direct parties to address it on that question before hearing evidence in terms of rule 52(7). The said rule states as follows:

> "(7) If, **in any cause or matter** it appears to the court on **its own initiative** that there is a question of law which it would be convenient to have decided before any evidence is given or any question or issue of fact is tried, the court may make an order accordingly, and **may direct such question of law to be raised for the opinion of the court**, either by special case **or in such other manner as the court may deem expedient**, and all such further proceedings as the decision of such question of law may render unnecessary may thereupon be stayed." (*my emphasis*)

The court raised the question of law rule and directed that the parties make oral submissions before it could give its opinion on the issue. I will now turn to consider the question of law that has arisen.

The question of law is whether the plaintiff's claim is competent or bad in law, given the extant judgments of the court that have already found the plaintiff's purported buyout of 2011 to have been carried out contrary to the terms of the divorce order. I must admit that the bulk of the plaintiff's submissions was not relevant to the issue that confronted the court. He related to the property being his inheritance, yet there is an extant divorce order that awarded the property to the parties in equal undivided shares. The effect of that order is that the property is jointly owned by the parties in equal undivided shares. This court is required to take judicial notice of decisions made by the court if reported or recorded in citable form. See s 24(1)(b) of the Civil Evidence Act [*Chapter 8:01*]. The relevant judgments of the court between the parties were also placed before me.

It is settled law that an extant court order remains binding on the parties and must be complied with unless and until it has been set aside or reversed on appeal, review, or by an order of a competent court for rescission of judgment in terms of the rules of court. The order of the court cannot be varied or disregarded even by the consent of the parties. See *Magauzi & Anor* v *Jekera* SC 54/22 at p 6, where UCHENA JA made the following apposite remarks:

> "**When a court grants an order all subsequent acts affecting the dispute between the parties rely on the court's order** and not the reason or facts the court based its judgment on. Execution of judgment debts is based on court orders and not the reason for which the court order was granted. Therefore, **a party or the parties cannot disregard a court order as they are bound by it**. In the case of *Chiwenga v Chiwenga* SC 2/14, it was stated that:
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> > 'The law is clear that **an extant order of this Court must be obeyed or given effect to unless it has been varied or set aside** by this Court and not even by consent can parties vary or depart therefrom. See also *CFU v Mhuriro & Ors* 2000 (2) ZLR 405 (S).'" (*my emphasis*)

The law is also clear that once a court makes findings of fact in a dispute between the parties, the same court cannot be asked to determine the same issues again. The court becomes *functus officio* once it has fully and finally exercised its jurisdiction over the matter. It is barred by the principles of issue *estoppel* and *res judicata* from dealing with the same issues which have been finally and definitively determined by the same court or other court of competent

jurisdiction. The extant judgment can only be extinguished by way of an appeal or review. See *Kensington Centre (Pvt) Ltd* v *Valis Bakery (Pvt) Ltd* SC 127/25 para 39.

In *casu*, the plaintiff's pleaded cause of action is one anchored on *rei vindicatio*. In his declaration, at p 6, he pleaded his case as follows:

> "3. The **plaintiff owns a property** namely number 10 Save Road, New Mabvuku, Harare wherein the defendant has been in occupation of same since the time the parties divorced.
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> 4. Sometime **in the year 2011 and in terms of the High Court order defendant was bought out of her 50% share on the property** namely number 10 Save Road, New Mabvuku, Harare. Despite the defendant having been bought out by the plaintiff, she has continued to be in occupation of house number 10 Save Road, New Mabvuku, Harare to the prejudice of the plaintiff who is not enjoying his share since 2007." (*my emphasis*)

The plaintiff's case is founded on the allegation that he did buy out the defendant's 50% share in the property in 2011 in terms of the divorce order. The said divorce order, granted by GUVAVA J in HC 4502/06 on 13 September 2007, awarded the property to the plaintiff and the defendant in equal, undivided shares. This means that they became co-owners of the property. I have already stated above, the allegations that the property was his inheritance from his parents cannot have any legal effect, as the court has already awarded both parties equal ownership of the property. The judgment was not reversed or set aside. It sealed the issue of ownership of the property such that until the terms of the buyout were complied with or it is sold and the proceeds shared equally, the property remains co-owned by the plaintiff and defendant, each holding 50% undivided shares therein.

Further in para 3, the order provided that "the property shall be valued by an independent evaluator appointed by the Registrar of the High Court from his list of valuers, and the costs of valuation shall be shared equally by the parties". It further stated in para (a) that "the valuation shall be carried out within two months of the date of this order". The plaintiff would, in terms of para (b), "shall have the right of the first option to buy out the plaintiff [defendant herein] of her 50% share of the property within a month of the date of the evaluation." The order further governs the right for the defendant herein to buy out the plaintiff should he fail to do so. If either party's buyout fails, para 3(d) provides that the property shall be sold and the net proceeds shared equally. The said paragraphs were couched in peremptory language. They had to be strictly

complied with. The time frames outlined in the divorce order had to be followed. There is no doubt that the parties failed to comply with these time frames. Then enters the judgment by UCHENA J in case number HC 3583/11: *Chipo Muusha* v *Gift Saruchera* HH 118/12. At p 2-3 of that judgment, the court made the following pertinent findings on the purported buyout by both the defendant and that of the plaintiff, which founded this claim:

> "The judge's order is dated 16 October 2007. **This means the valuation should have taken place within two months of that date** and the buy out by the respondent within one month of the date of valuation and that by the applicant within one month of the respondent's failure to buy her out. **The applicant and respondent therefore failed to cause the valuation of their property in terms of para 3 (a) of GUVAVA J's order**. **The respondent also failed to comply with para 3 (b) of the order**. The applicant, having failed, to comply, with para 3 (a) of the order belatedly, attempted to comply with para 3 (c) of the order about two years later in April 2009. **The respondent with the assistance of a letter dated 22 March 2011 from an officer in the Registrar's office also belatedly attempted to overturn the applicant's attempts and himself attempted to comply with para 3 (b) of the order by paying the applicant's 50% share of the proceeds of the house into court on 26 April 2011**. They are now fighting over whose, buying out of the other, should prevail. The applicant seeks an order ratifying her buying out of the respondent's 50% share of the house. …
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> She now claims to have a better right and seeks the confirmation of her buying out the respondent. The respondent disputes that right and insists he is entitled to buy out the applicant and has also paid the applicant's half share into court. **The respondent claims in his opposing affidavit to be entitled to the property in view of the letter written to him by Mr Antonio an officer in the Registrar's office on 22 March 2011**…
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> The officer in the Registrar's office, clearly wrongly interpreted the court's order by giving the impression that the time limits imposed therein where of no consequence. **He unlawfully extended the time within which the respondent was to act, to a month within his receipt of the officer's letter, disregarding the time limits imposed by the judge who granted the order. He has no authority to disregard the court's order, nor to extend the times within which the parties had to act**. His only duty was to facilitate the implementation of the order as ordered by the trial court. He cannot amend the order or vary it. **His actions were clearly outside the ambit of his authority and cannot validate the respondent's claim to being the one who bought out the other in terms of the court order**. He usurped the functions of a judge, which even a judge can only exercise on application by one of the parties." (*my emphasis*)

The court made a finding that the plaintiff and the defendant failed to comply with the court order, in particular, regarding when the valuation was to be done and the exercise of the first option to buy out the defendant. The court found the 2011 buyout alleged by the plaintiff in para 4 of his declaration to have failed to comply with the order by GUVAVA J and, therefore, invalid. Those findings were never challenged, set aside, or reversed on appeal. The judgment is still extant. Accordingly, once the court found the plaintiff's 2011 purported buyout non-compliant with GUVAVA J's order, it rendered the purported buyout a nullity. It is trite that

anything done contrary to a court order is a nullity. In *Sithole* v *Sithole & Ors* HH (*supra*) at pp 3-4, DUBE J (as she then was) fully set out the legal position as follows:

> "In *Schierhaut* v *Minister of Justice* 1926 AD 99 @ 69, per INNES CJ, the court said the following of things done contrary to a court order,
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> > 'It is a fundamental principle of our law that **a thing done contrary to the direct prohibition of the law is void and of no effect**. The rule is thus stated: *Ea quae lege* fiery *prohibentux, si fuerint facta, non solum inutilia, sed pro nfectis habeantur:licet* legislator fiery *prohibuent tantum, nec speccialiter dixerit inutile esse debere quod factum est*: Code 1.14.5. So that what is done contrary to the prohibition of the law is not only of no effect but must be regarded as never having been done and that whether the lawgiver has expressly so decreed or not: the mere prohibition operates to nullify the act… and the disregard of peremptory provisions in a statute is fatal to the validity of the proceeding affected….'
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> Similar sentiments were echoed in *Munyikwa* v *Mapenzauswa & Anor* SC 91/05. In this case, a party sold property contrary to a court order. The court said the following:
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> > 'Accordingly, **the sale, having been done contrary to the provisions of the High Court order, was certainly not proper**. It was therefore not proper to order that the house be transferred to the first respondent, as **the sale was a nullity**.
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> > **Court orders are made so that they are complied with**. The order of the High Court made on 16th May 2002 had neither been set aside nor appealed against. **The High Court cannot be used to enforce a sale that was carried out contrary to the provisions of a lawful order**.
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> > In view of the above, the sale of the property to the first respondent cannot be allowed to stand.'
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> In the *Munyikwa case*, the consideration that the purchaser of the property was an innocent purchaser did not carry the day.
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> **A thing that is done in breach of a court order is *void ab initio.* It is of no legal effect**. The failure to comply with a court order has the effect of injuring the rights of the other party. When a party is granted a provisional court order, those proceedings are complete notwithstanding that they may well be subject to an appeal or confirmation. The order ensuing is required to be complied with as any other order. A subsequent breach or wilful disobedience of the order entitles the person in whose favour the order was granted to enforce it. A deliberate disregard of a court order constitutes contempt of court. It has the effect of violating the court's dignity, repute and authority. It is the duty of the court to regulate its own orders. Courts cannot sit back and watch whilst its orders are being disobeyed. As a result, **the courts regard anything that is done contrary to a court order to be of no force and effect and is regarded as not having been done at all**." (*my emphasis*)

As already determined by the court *per* UCHENA J, the plaintiff failed to comply with para 3 of the court order, which set out time frames within which the valuation and the first option to buy out the defendant could be validly done. That period, calculated from the date of the court order by GUVAVA J, being 16 October 2007, had long since lapsed by the time the purported buy-out in 2011 was carried out. UCHENA J accepted this position. Accordingly, nothing valid can arise from the purported buyout. It was a nullity and, therefore, lacked legal existence. It is

trite that a nullity begets nothing valid. In other words, nothing can flow from a nullity. Thus, LORD DENNING stated in *MacFoy* v *United Africa Co Ltd* [1961] 3 All ER 1169 (PC) at 1172I:

> "If an act is void, then it is in law a nullity. It is not only bad, but incurably bad. There is no need for an order of the court to set it aside. It is automatically null and void without more ado, though it is sometimes convenient to have the court declare it to be so. And every proceeding which is founded on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse."

There is no dispute, therefore, that the plaintiff's claim is founded on an illegality or a nullity. This is what the extant judgment of the court *per* UCHENA J upheld in HC 3583/11. An illegal act is void *ab initio* and cannot be enforced. The plaintiff accepted this ruling. He even went on to bring an application for variation of the divorce order in 2012 in case number HC 3029/12. The matter was again brought before UCHENA J and in the judgment handed down on 20 February 2014 (see *Saruchera* v *Muusha* HH 61/14), and at p 1, the following remarks are apposite:

> "The applicant was given an option to buy out the respondent's share, failing which the respondent would exercise the same option. In the event of both parties failing to buy out the other, the house was to be sold, and the net proceeds would be shared equally between the parties. **They both failed to comply with the terms of the order granted by GUVAVA J on 13 September 2007, but sought to buy each other out through the unlawful assistance of court officials**. They both paid money into court for purposes of buying out the other's share of their former matrimonial house number 10 Save Road, Mabvuku. **Their failure to comply with the order was in respect of the time within which the house was to be valued and the time frames within which the applicant was to buy out the respondent's share and the respondent was to buy out the applicant's share if he failed to buy her out.**
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> Both parties want to exercise the right to buy out each other. **They can only do so if the order is varied to enable them to have the house valued within the time to be ordered by the court** and exercise the option of buying out the other within the time ordered by the court…" (*my emphasis*)

The court proceeded to vary the order by GUVAVA J, restating its terms. This means that no valid buyout took place in 2011, and the plaintiff was given the same time frame as had been given by GUVAVA J to exercise the first option to buy out the defendant in that 2014 judgment. See p 2 of the judgment. Nothing happened. The plaintiff went on to file another application for variation of the order by GUVAVA J, intending to buy out the defendant in 2015 in case number HC 8941/15. The court *per* TSANGA J in *Gift Saruchera* v *Chipo Saruchera* HH 372/17, dismissed the application for variation. It found no good cause shown for the variation sought.

The court was of the view that the predicament the parties found themselves in was one that had been catered for in the judgment by GUVAVA J. The court order was clear about what would happen if either party failed to buy out the other within the stipulated time frames. The court found the order to be binding. See p 4 of the judgment.

The judgment by TSANGA J clearly held that the parties had to resort to para 3(d) of the court order by GUVAVA J, as they had failed to buy out each other lawfully. This means that the property had to be sold and the net proceeds thereof shared equally. The judgment of the court is very clear in that regard, and the court's findings were never set aside. Given that the decisions of the court are extant, they are binding on the parties. The plaintiff, in the face of those judgments, finding that there was no valid buyout done in 2011 by the plaintiff, cannot purport to have acquired sole ownership entitling him to bring a vindicatory claim. It is trite that the remedy of *rei vindicatio* is only available to an owner of a property for its recovery from the possession of any other person. See *Chenga* v *Chekadaya & Ors* SC 07/13. The plaintiff's claim is, therefore, legally incompetent as it is founded on a nullity or illegality. The court has already pronounced itself finally and definitively. The claim is accordingly bad in law.

It is also clear that a claim that is incompetent or bad in law can only be dismissed and not struck off the roll. See *Ahmed* v *Docking Station Safaris (Pvt) Ltd t/a CC Sal*es SC 70/18, where BHUNU JA said:

> "In view of these irregularities, I found it proper to dismiss the application instead of striking it off the roll. In *Mudyavanhu v Saruchera* SC 75/15 GWAUNZA JA (as she then was) stated that;
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> > 'It is noted that a number of matters have been struck off the roll by this Court on the ground that the relief sought was not exact in nature and that as a result the related notice of appeal was incurably defective. See *Ndlovu & Anor v Ndlovu & Anor* (*supra*). However, in this case, **the court found that the appeal was not only incurably defective but wrong and bad in law**. **The appeal could therefore not properly be struck off the roll because the appellant had no avenue, legally or procedurally, to follow in case he was inclined to bring the same appeal before this Court.**'
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> > The grave irregularities that accompany this application warrant a dismissal. The applicant`s draft order is fatally defective and **the application as a whole is wrong and bad in law. This application can only be dismissed**." (*my emphasis*)

The case was not brought on a proper legal footing. The way the claim was pleaded renders it legally unsustainable without further ado. The proper exercise of the court's discretion is to dismiss the matter. See also *Katerere & Ors* v *Triangle (Pvt) Ltd* SC 23/23 at p. 10. The

court is precluded from reopening arguments on the same issues that it has already finally and definitively determined. The litigation must end where the court has stated its position on what the parties can now properly do to bring finality to the dissolution of their joint ownership of the property. That can surely be para 3(d) of the order by GUVAVA J. The plaintiff cannot continue to litigate, founding his cause on an issue that has been fully and finally resolved. The claim must accordingly be dismissed.

THE QUESTION OF COSTS

The defendant sought costs of suit on a legal practitioner and client scale. It is settled law that the award of costs is entirely within the discretion of the court. The general principle is that costs should follow the event. However, costs on a legal practitioner and client scale are not lightly granted. The position relating to the award of costs against self-actors was fully set out in *Karengwa* v *Mpofu* HB56/15, where the court held that:

> "On the issue of costs, the court is generally reluctant to award costs on an attorney and client scale against a self-actor**. In exceptional circumstances, however, where there is a clear abuse of court process the court is inclined, in such event, to order costs against a self-actor on a punitive scale**. The awarding of costs is at the discretion of the court." (*my emphasis*)

I agree with Mr *Chagwiza* that this case is a clear abuse of court process. Although the record is unclear as to what happened at the PTC, the plaintiff did not dispute that MAWADZE DJP strenuously tried to explain to him the futility of his cause. He has persisted with this utterly incompetent claim. The plaintiff was a party to all the judgments which settled the issue of the invalidity of the purported 2011 buyout upon which this claim was founded. He did not take heed of the various court decisions. He cannot, even after the TSANGA J judgment, continue to competently claim to be the sole owner of the property. The court was clear in that judgment that the parties had failed to buy out each other in terms of the GUVAVA J order, and the only default position left for them was provided for in the order, that is, to have the property sold, and share the net proceeds thereof equally.

For the plaintiff to persist with this claim in the face of the said judgments is the highest level of recklessness and irresponsible litigation. This blatant disregard for the authority of the court cannot be condoned. The plaintiff dishonestly professed ignorance of the very cases he has been filing. These proceedings were completely unwarranted, given the extant orders of the court

regarding what the parties should do, as set out in the order of GUVAVA J. This stubborn resistance to complying with the order of court and the continued harassment of the defendant must surely be brought to a halt. She has been put out of pocket unnecessarily. The plaintiff must be mulcted with costs on a punitive scale, as that is what is justifiable in the circumstances.

DISPOSITION

The court has already spoken on the basis of the plaintiff's cause of action. In the judgments by UCHENA and TSANGA JJ, the findings of the court are unambiguous that the plaintiff failed to comply with the time frames for any buyout of the defendant's 50% share in the property as stipulated in the judgment by GUVAVA J. That purported buyout by the plaintiff in 2011, undertaken contrary to a court order, and as already found by the court before, was a nullity. It could not validly create ownership of the defendant's 50% share. The plaintiff and the defendant have, therefore, remained where they were after the 2007 judgment, namely, that they are co-owners of the property. They hold equal undivided shares in the property.

The judgment by TSANGA J made it very clear that the order by GUVAVA J reflects the default position, where both parties have failed to buy out each other's share within the stipulated time frames. Thus, para 3(d) of the divorce order provides the only remaining way out for the parties: to have the property sold and share the net proceeds thereof equally. The present claim was accordingly incompetent or bad in law. It can only fail. Litigants ought to respect the authority of the court. The plaintiff cannot seek relief from the court and, at the same time, disregard its judgments. The rule of law demands that court orders must be obeyed unless and until set aside by an order of a competent court; otherwise, there would be absolute chaos. The same position was reiterated in *Mauritius & Anor* v *Versapak Holdings (Pvt) Ltd (in Liquidation) & Anor* SC 02/22, where the court said:

> "It is trite that **once a court has made an order it binds all and sundry concerned. Everyone bound by the court order has a duty to obey the order as it is until it has been lawfully altered or discharged by a court of competent jurisdiction or statute**. In *Hadkinson v Hadkinson* [[1952] 2 All ER 567 (CA) at 569C] ROMER LJ recited the duty to obey court orders with remarkable clarity when he said:
>
> > 'It is the plain and unqualified obligation of every person against or in respect of whom an order is made by a court of competent jurisdiction to obey it unless and until that order is discharged. The uncompromising nature of the obligation is shown by the fact that it

> even extends to where the person affected believes it to be irregular or even void.'" (*my emphasis*)

These proceedings crossed the rubicon of responsible litigation. They were completely unwarranted, given the extant judgments of the court which defined and gave content to the parties' rights in respect of the property. There can be no worse abuse of court process than this. The plaintiff must accept the default position set out in the divorce order by GUVAVA J and stop wasting everyone's time.

Accordingly, it is ordered that:

The plaintiff's claim be and is hereby dismissed with costs on a legal practitioner and client scale.

DEMBURE J: ……

Kwenda & Chagwiza Attorneys At Law, defendant's legal practitioners